



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT - 7 1994

400 Seventh Street, N.W.
Washington, D.C. 20590

DOT-E 11333

EXPIRATION DATE: October 31, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: The U.S. Department of Defense
Washington, DC
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one- time transportation in commerce of three (3) DOT Specification 5C drums containing a Division 6.1 material. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections
173.226(b) (3) (iii) &
173.226(b) (4) (ii) (A).
5. BASIS. This emergency exemption is based on the Department of Defense application dated September 21, 1994 , submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Methylhydrazine	6.1	UN1244	I Hazard Zone A

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING -

(i) Packaging consists of three (3) 55 gallon stainless steel DOT Specification 5C drums. Each drum is identified by one of the following serial numbers: H-8045, H-8292, or H-8632. These drums are constructed of 16 gauge stainless steel thick and do not meet the minimum thickness requirements of 49 CFR 173.226(b) (4) (ii) (A).

(ii) The closures for the three DOT Specification 5C drums are not required to be provided with a secondary cap seal in accordance with 49 CFR 173.226(b) (3) (iii).

(iii) The DOT Specification 5C drums must be further packed in an outer drum conforming to the UN 1A2 Specification in accordance with 49 CFR 173.226(b).

b. MARKING - In addition to the markings required by Part 172 and Part 178, each drum must be marked "DOT-E 11333".

c. VEHICLE SPECIAL REQUIREMENTS - The shipment must be in enclosed van trailers, in exclusive-use-of-vehicle service. The drums must be securely blocked and braced, and may not be stacked (double decked) within the transport vehicle.

8. SPECIAL PROVISIONS.

a. This exemption authorizes a one-time shipment of the three (3) drums described in Paragraph 7.a. to originate at Johnson Space Center, Houston, TX, destined for White Sands Missile Range, NM, without any intermediate pickup or delivery.

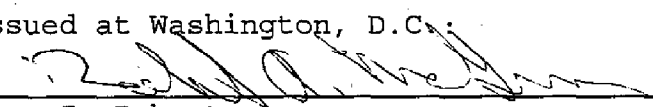
b. Persons who subsequently receive the drums covered by this exemption may not re-offer them for transportation unless the drums have been emptied and triple rinsed.

c. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.
- No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

OCT - 7 1994


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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